ATTACHMENT 5

Performance Requirement Summary

1. The government expects the contractor to perform all services required in the Performance Work Statement (PWS) at an acceptable level. Whenever the Government learns of substandard performance, either through periodic inspections, direct observation, customer complaints, or any other mechanism, the preferred course of action will be discussions with the Contractor to inform the contractor of a problem. Discussions should effectively prevent recurrences of substandard performance. However, this Performance Requirement Summary (PRS) provides an alternative mechanism by which the Government's payment to the Contractor may be reduced in the event of substandard performance.

2. Criteria for acceptable and unacceptable levels of performance are as follows: Certain tasks will be considered critical to the Government's performance of its duty to its personnel as well as for safety, well-being, health, and welfare. Because of this, the Government has listed certain tasks as critical and must be completed properly every time as scheduled. Coast Guard Base Cape Cod identified the below listed items as critical contract requirements:

    a. On Time Delivery of On-Call Containers (PWS 5.1.1, 5.1.2)

    b. Contractor-Furnished Containers (PWS 5.2.1, 5.2.2)

    c. Container Construction and Maintenance (PWS 5.2.5, 5.2.6, 5.3.4)

    The standards for the above items must not exceed two (2) defects per month because of this all-other tasks per the contract may have to four (4) defects and will still be considered acceptable. However, any complaints received thereafter will cause the services to be unacceptable for the month.

3. The Government's primary quality assurance procedures are based on validated customer complaints and periodic inspections by the Contracting Officer's Representative (COR). One complaint will be counted for each reported and verified unacceptable performance of service (as listed in the PWS). Thus, if one person complains that the six (6) cubic yard container outside the galley was not emptied during a one-week period and that the immediate vicinity of any containers was not cleaned during collection, this would count as two complaints, one for each unsatisfactory

performance of service. However, if two different people complain about the same six (6) yard container outside the galley not emptied during a one-week period; this would only count as one complaint because both complaints stemmed from the same unsatisfactory performance.

4. When the number of defects in the Contractor's performance exceeds the allowable number of defects, the COR shall initiate a Contract Discrepancy Report (CDR). In response to the CDR the Contractor will be required to explain, in writing, why performance was unsatisfactory, how performance will be returned to satisfactory levels, and how recurrence of the problem will be prevented. If the Contractor is required to rework services found by the Government to be unsatisfactory, it will be at the Contractor's expense.

5. A defect will not be counted when the service is re-performed within 24 hours after notification by the COR and receives an acceptable rating by the COR.

6. Deductions shall not be deemed to waive or limit any right of the Government under the clauses entitled "default" and "Inspection of Services".

7. Contractor Discrepancy Reports (CDR) will be reviewed during Contractor Performance Evaluations. CDRs may be referenced in Contractor Performance Evaluation documents.